**Stereo.HCJDA 38.**
**Judgment Sheet**
**IN THE LAHORE HIGH COURT**
**RAWALPINDI BENCH, RAWALPINDI.**
**JUDICIAL DEPARTMENT**
**....**

**W.P.No.2111 of 2013**

WASIF ALI, ETC.

**Versus**

MRS. FAKHRA JABEEN, ETC.

**JUDGMENT**

Date of hearing: **05.10.2021.**

Petitioners by: M/s. Kh. Shahid Rasool Siddiqui and Muhammad Ishaq Shah, Advocates.

Respondents No.1 and 2 by: Mr. Ghufran Khurshid Imtiazi, Advocate.

***MIRZA VIQAS RAUF, J.***This petition as well as W.P.No.2716 of 2019, are though arising out of two different family suits but since raising similar question of law, have been placed before us by the order of Hon'ble Chief Justice as larger Bench. We thus hereby intend to decide both these petitions through this single judgment. We have observed that in the former petition, learned Single Judge of this Court referred the matter to the Hon'ble Chief Justice through order dated 17th June, 2020 while framing the following question: -

> *"5. The question before this Court is as to whether Section 13 and 16 of Nikahnama are to be read separately or in conjunction with each other. Learned counsel for the petitioners has relied upon judgment of this Court in case titled Mst. Iram Shahzadi v. Muhammad Imran-ul-Haq and others* ***(2019 MLD 112 Lahore)*** *in which learned Judge has held that the entries of Columns No.13 and 16 are to be considered separately. On the other hand, there is also judgment of this Court in case titled Attorney General v. Mst. Amna-Tuz-Zahra* ***(2011 CLC 726 Lahore)*** *which reads that the entries made in Columns No.13 and 16 are to be taken together. Since there are two conflicting*

> *judgments of this Court on one and the same point, it seems appropriate that the matter be heard by a Larger Bench."*

Similarly, second petition i.e. W.P.No.2716 of 2019 was when placed before one of us Mirza Viqas Rauf-J on 31st October, 2019, following order was passed:-

> *"3. Learned counsel for the petitioner inter-alia contends that the petitioner instituted a suit for recovery of maintenance and dower. Maintains that suit was resisted by the "respondent", who also instituted a suit for restitution of conjugal rights. Adds that after consolidating both the suits, the learned Judge Family Court proceeded to decree both the suits through judgment dated 26th April, 2019. Submits that in appeal filed by the "respondent", the learned Additional District Judge, while allowing the appeal modified the judgment and decree of the learned Judge Family Court to the extent of property mentioned in column No.16 of Nikahnama. Learned counsel emphasizes that while partly allowing the appeal, the learned Additional District Judge has grossly misread the evidence. Argues that though property mentioned in column No.16 of Nikahnama was not owned by the "respondent" but in the light of principles laid down in "Mst. RAZIA BEGUM v. JANG BAZ and 3 others"* ***(2012 CLC 105)*** *and "MUHAMMAD ANWAR KHAN v. SABIA KHANAM and another"* ***(PLD 2010 Lahore 119)****, suit was rightly decreed by the learned Judge Family Court to this extent.*
>
> *4. Points raised need consideration.* ***Admit. Notice.***
>
> *5. Before parting, it is, however, observed that house in question was admittedly the ownership of father of "respondent" which was mentioned in column No.16 of the Nikahnama Mark-A as part of dower. There is no cavil that marriage is a civil contract which has for its object the procreation and the legalizing of children and the Mahr or dower is a sum of money or other property which the wife is entitled to receive from the husband in consideration of the marriage.*
>
> *6. With all reverence to the principles laid down in the judgments supra, I am of the opinion that being a civil contract, the terms and conditions of Nikah can only be invoked against the parties privy to the same. Binding a person alien to the document (Nikahnama) as well as suit offends the principles of jurisprudence relating to the enforcement of contracts/agreements. Office is, therefore, directed to place this matter before the* ***Hon'ble Chief Justice*** *for constitution of* ***larger Bench*** *for the resolution of matter in issue."*

**2.** Before taking any further step, it would be apt to give a necessary resume of facts giving rise to these constitutional petitions. For the purpose of disposal of these writ petitions, Wasif Ali (petitioner No.1 in the instant petition), Major (Retd.) Zulfiqar Hussain Shah

Kazmi (petitioner No.2 in the instant petition) and Mst. Fahmeena Bashir (petitioner in W.P.No.2716 of 2019) would be treated as petitioners No.1 to 3 respectively whereas Mst. Fakhra Jabeen (respondent No.1 in the instant petition), Maheen Ali (respondent No.2 in the instant petition) and Muhammad Kashif Nawaz (respondent No.3 in W.P.No.2716 of 2019) would be treated as respondents No.1 to 3 respectively.

**Facts of W.P.No.2111 of 2013.**

**3.** Mst. Fakhra Jabeen/respondent No.1 was married to Wasif Ali/petitioner on 5th June, 2005 and to this effect a Nikahnama was executed in terms of West Pakistan Rules under the Muslim Family Laws Ordinance, 1961. The spouses were blessed with a daughter namely Maheen Ali/respondent No.2, who born on 22nd August, 2006. On account of some differences, a suit for recovery of dower, plot measuring 10-Marlas, gold ornaments, household articles and maintenance allowance was instituted by respondents No.1 and 2 against petitioners No.1 and 2. Suit was resisted by petitioners No.1 and 2, who submitted their written statement wherein they controverted the factual assertions. From the divergent pleadings of the parties, necessary issues were framed and finally suit was decreed partly vide judgment dated 31st January, 2011. Feeling aggrieved, both the sides preferred their respective appeals before the learned Additional District Judge, Taxila, however, appeal filed by petitioners No.1 and 2 was dismissed whereas appeal preferred by respondents No.1 and 2 was partly accepted vide judgment and decree dated 4th June, 2013.

**Facts of W.P.No.2716 of 2019.**

**4.** Mst. Fahmeena Bashir/petitioner No.3 instituted a suit for recovery of dower, maintenance and house as per column No.16 of Nikahnama averring therein that she was married to Muhammad Kashif/respondent No.3 on 2nd March, 2017 in accordance with Shariat-e-Muhammadi in lieu of dower amounting to Rs.1,00,000/- which is

still outstanding. As per averments contained in the plaint, behavior of the respondent No.3 towards petitioner No.3 was cruel since beginning of the marriage and finally in the month of May, 2017, he ousted her from his house in three wearing apparels and since then she is living with her parents. As per column No.20 of Nikahnama, Rs.10,000/- was fixed as monthly maintenance and in column No.16 of Nikahnama, a house was also mentioned but respondent No.3 has not given the same to petitioner No.3 and is reluctant to do so. The respondent No.3 contested the suit by filing written statement wherein he controverted the assertions contained in the plaint. A separate suit for restitution of conjugal rights was also filed by respondent No.3 against petitioner No.3. Learned Trial Court, after consolidating both the suits, from the divergent pleadings of the parties, framed necessary issues and recorded evidence of both the sides. On culmination of trial, the learned Judge Family Court partly decreed the suit of petitioner No.3 and also decreed the suit of respondent No.3 by way of consolidated judgment dated 26th April, 2019. Feeling dissatisfied, the respondent No.3 preferred an appeal under Section 14 of the Family Courts Act, 1964, which was partly allowed by the learned Additional District Judge by way of judgment and decree dated 26th June, 2019.

**5.** Khawaja Shahid Rasool Siddiqui, Advocate representing the petitioners No.1 and 2 submitted that marriage was solemnized on 5th June, 2005 and in terms of columns No.13, dower was fixed as Rs.5,00,000/-. He added that in lieu of dower, plot measuring 10-Marlas was mentioned in column No.16. Learned counsel contended that entries in columns No.13 and 16 cannot be read in isolation. It is argued that respondent No.1 could only claim Rs.5,00,000/- as dower. He maintained that dower in shape of Rs.5,00,000/- was even otherwise paid to respondent No.1 but she has wrongly been held entitled for the same by the Courts below. While referring the entries in column No.16 of Nikahnama, learned counsel submitted that plot in question was owned in equal share by petitioners No.1 and 2. Learned counsel

submitted that petitioner No.2 was since not privy to the marriage, so he cannot be deprived of his property being father of bridegroom. In support of his contentions, learned counsel has placed reliance on *FAWAD ISHAQ and others v. Mst. MEHREEN MANSOOR and others***(PLD 2020 Supreme Court 269)**.

**6.** Conversely, Mr. Ghufran Khurshid Imtiazi, Advocate representing the respondents No.1 and 2 submitted that dower was never paid by petitioners No.1 and 2. He added that entries in columns No.13 and 16 are independent and suit was rightly decreed by the learned Appellate Court to this effect. Learned counsel contended that petitioner No.2 was signatory to the Nikahnama and he was well aware of the fact of incorporation of his property in the Nikahnama. Learned counsel emphasized that in view of well settled principles of law, no illegality has been committed by the learned Additional District Judge while passing the impugned judgment and decree. Reliance is placed on *MUHAMMAD IMRAN v. ADDITIONAL DISTRICT JUDGE, MULTAN and 3 others* **(PLD 2018 Lahore 429)**, *Mst. IRAM SHAHZADI v. MUHAMMAD IMRAN-UL-HAQ and others* **(2019 MLD 112)**, *Mst. MITHAN v. ADDITIONAL DISTRICT JUDGE, JATOI AND 7 others"* **(2017 MLD 1101)** and *Sheikh MUHAMMAD MUNEER v. Mst. FEEZAN* **(PLD 2021 Supreme Court 538)**.

**7.** On the other hand, Mr. Muhammad Suleman Iqbal, Advocate representing the petitioner No.3 submitted that initially learned Judge Family Court has rightly held the petitioner No.3 entitled for the house mentioned in Column No.16 of Nikahnama but findings to this effect were modified by the learned Additional District Judge without assigning any lawful reasoning in appeal filed by respondent No.3. It is contended that impugned judgment and decree is not tenable under the law.

**8.** Heard. Record perused.

**9.** Though through their respective suits, respondents No.1 and 2 and petitioner No.3 claimed multiple reliefs e.g. maintenance, gold ornaments, dower and property mentioned in column No.16 of Nikahnamas but before us, the controversy is only relatable to dower mentioned in column No.13 and property find mentioned in column No.16 of Nikahnamas. The questions before us are thus as under: -

> ***A. Whether columns No.13 and 16 of Nikahnama are to be read separately or in conjunction with each other?***
>
> ***B. Whether entries in Nikahnama can operate against a person not privy to the document/Nikahnama.***

**10.** Before adverting to the question-A, it would be advantageous to first have a cursory glance of the circumstances leading to the promulgation of Muslim Family Laws Ordinance (VIII of 1961) (hereinafter referred as "Ordinance, 1961"). The "Ordinance, 1961" is an enactment which, according to its preamble, was enacted to give effect to certain recommendations of the Commission on Marriage and Family Laws. Historical background of the aforementioned legislation is that in the early 50's a sizeable segment of the society comprising females had expressed reservations as regard the treatment meted out to women by the male dominant society. The All Pakistan Women Association (APWA), a body which claimed to represent women's point of view was in the forefront in demanding legislation to protect their rights and had in fact started agitation. The Government constituted a Commission to consider various aspects of the demands and make recommendations in relation to the family system. The reference to Commission, inter alia, was to make a report on the proper registration of marriage and divorces, the right exercisable by either partner through a Court or by other judicial means and the establishment of special courts to deal expeditiously with cases affecting women rights. After due deliberation, the Commission issued its report vide notification dated 11.06.1956, which was published in the gazette of Pakistan. Various recommendations of the Commission were incorporated in the "Ordinance, 1961". We would like to observe that

with the promulgation of "Ordinance, 1961", every marriage solemnized under Muslim Law was made registerable in accordance with provisions of the "Ordinance 1961". Section 5 of the "Ordinance 1961" deals with the registration of marriages, which reads as under: -

> **5.** ***Registration of marriages.*****(1)** Every marriage solemnized under Muslim Law shall be registered in accordance with the provisions of this Ordinance.
>
> **(2)** For the purpose of registration of marriage under this Ordinance, the Union Council shall grant licence to one or more persons, to be called Nikah Registrars, but in no case shall more than one Nikah Registrar be licensed for any one Ward.
>
> **Province of Punjab.**
>
> (2) For the purpose of registration of marriages under this Ordinance the Union Council shall grant licenses to one or more persons, to be called Nikah Registrars.
>
> **Province of Punjab.**
>
> (2-A). The Nikah Registrar or the person who solemnizes a Nikah shall accurately fill all the columns of the Nikahnama form with specific answers of the bride or the bridegroom.
>
> **(3)** Every marriage not solemnized by the Nikah Registrar shall, for the purpose of registration under this Ordinance, be reported to him by the person who has solemnized such marriage.
>
> **(4)** Whoever contravenes the provisions of sub-section (3) shall be punishable with simple imprisonment for a term which may extend to three months or with fine which may extend to one thousand rupees, or with both.
>
> **Province of Punjab:**
>
> (4) If a person contravenes the provision of:
>
> (i) subsection (2A), he shall be punished to simple imprisonment for a term which may extend to one month and fine of twenty five thousand rupees; and
>
> (ii) subsection (3), he shall be punished to simple imprisonment for a term which may extend to three months and fine of one hundred thousand rupees.
>
> **(5)** The form of *nikahnama*, the registers to be maintained by Nikah Registrars, the records to be preserved by Union Council, the manner in which marriage shall be registered and copies of *Nikahnama* shall be supplied to the parties, and the fees to be charged therefor, shall be such as may be prescribed.

(Underlining supplied for emphasis)

**11.** In order to carry out the object of the "Ordinance, 1961", West Pakistan Rules under the Muslim Family Laws Ordinance, 1961 (hereinafter referred as "Rules, 1961") were framed on 20th July, 1961. Rules 7 to 13 provide the manner of registration of marriages. Rule 8 is directly related to the prescribed form of Nikahnama, which is to be printed in Form II appended with the Rules. The question as to whether clauses 13 and 16 of the Nikahnama are to be read separately or in conjunction with each other is not a ticklish one though it has been made so on account of incompetency of Nikah Registrars. In order to understand the meanings and links interse columns No.13 to 16 of Nikahnama, the same are reproduced below:-

| | |
|---|---|
| 13. Amount of dower | _____ |
| 14. How much of the dower is Mu'wajjal (prompt) and how much mu'ajjal (deferred) | _____<br>_____ |
| 15. Whether any portion of dower was paid at the time of marriage. If so, how much | _____<br>_____ |
| 16. Whether any property was given in lieu of the whole or any portion of the dower with specification of the same and valuation agreed to between the parties. | _____<br>_____<br>_____ |

While going through columns No.13 to 16, we can easily observe that column No.13 exclusively deals with the amount of dower whereas columns No.14, 15 and 16 are in addition to column No.13 in order to explain nature of dower, part of dower if paid at the time of marriage or the property in lieu of dower.

**12.** We cannot lose sight of the fact that in construing a document, one has to read the same as a whole and not by picking and

choosing a particular paragraph or portion thereof. It is trite law that deed of contract has to be construed strictly and literally without deviating or implying anything which was not supported by the intention of the parties and the language of the document. Nothing can be implied in a contract, which was inconsistent with its expressed terms. Needless to observe that intent and purpose of a document should be inferred from the language employed and its ordinary meanings should be adhered to and given preference rather than the far-fetched meanings. The primary object of interpretation of any contract is to find out intention of the parties to the agreement. By looking to the words used one has to construe the intention which persuaded the parties to enter into the agreement. The cardinal presumption is that the parties have intended what they have in fact said, so that their words must construed as they stand. That is to say, the meaning of the document or of a particular part of it is to be sought in the document itself. One must consider the meaning of the words used, not what one may guess to be the intention of the parties. However, no contract is made in a vacuum. In construing the documents, the Court may resolve an ambiguity by looking at its commercial/social purpose and the factual background against which it was made. The dower specified in any Nikahnama, being consideration of the marriage, is an essential condition of the contract that has to be construed keeping in view the aforementioned principle. Reliance in this respect can be placed on *ANWARUL HAQ v. FEDERATION OF PAKISTAN through Secretary, Establishment Division Islamabad and 13 others* **(1995 SCMR 1505)** and *HOUSE BUILDING FINANCE CORPORATION v. SHAHINSHAH HUMAYUN COOPERATIVE HOUSE BUILDING SOCIETY and others* **(1992 SCMR 19)**.

**13.** There is no cavil that marriage is a civil contract, which has for its object, the procreation and the legalizing of children and dower or "Mehr" is the sum of money or other property which the wife is entitled from the husband in consideration of the marriage. It is an

obligation imposed upon a husband as a mark of respect to the wife and where a claim is made under a contract of dower, the Court should, unless it is provided by any legislative enactment, award the entire sum provided in the contract. The dower may be prompt or deferred. Prompt dower is payable immediately on demand. Where part of dower is described as Mu'wajjal i.e. deferred but no time limit is fixed for its payment, the time of such payment is either death or divorce. Dower may be in any form of property, tangible or intangible. Parties to the marriage contract i.e. bride and the bridegroom have freedom of contract to negotiate and settle the terms of marriage including dower. Dower is thus the only corollary for a valid marriage. Guidance in this respect can be sought from the following verses of Holy Qur'an: -

## سورةالنساء آیت مبارکہ4

وَاٰتُوا النِّسَآءَ صَدُقٰتِهِنَّ نِحۡلَةً ؕ فَاِنۡ طِبۡنَ لَـكُمۡ عَنۡ شَىۡءٍ مِّنۡهُ نَفۡسًا فَكُلُوۡهُ هَنِيۡٓـًٔا مَّرِيۡٓـًٔا (۴)(4:4)

اور عورتوں کو ان کے مہر خوشی سے دے دیا کرو۔ ہاں اگر وہ اپنی خوشی سے اس میں سے کچھ تم کو چھوڑ دیں تو اسے ذوق شوق سے کھالو (۴)
(ترجمہ: فتح محمد جالندھری)

*And give unto the women (whom ye marry) free gift of their marriage portions. But if they of their own accord remit unto you a part thereof, then ye are welcome to absorb it (in your wealth).*

## سورةالانساء آیت مبارکہ19

يٰۤاَيُّهَا الَّذِيۡنَ اٰمَنُوۡا لَا يَحِلُّ لَـكُمۡ اَنۡ تَرِثُوا النِّسَآءَ كَرۡهًا ؕ وَلَا تَعۡضُلُوۡهُنَّ لِتَذۡهَبُوۡا بِبَعۡضِ مَاۤ اٰتَيۡتُمُوۡهُنَّ اِلَّاۤ اَنۡ يَّاۡتِيۡنَ بِفَاحِشَةٍ مُّبَيِّنَةٍ ۚ وَعَاشِرُوۡهُنَّ بِالۡمَعۡرُوۡفِ ۚ فَاِنۡ كَرِهۡتُمُوۡهُنَّ فَعَسٰۤى اَنۡ تَكۡرَهُوۡا شَيۡـًٔا وَّيَجۡعَلَ اللّٰهُ فِيۡهِ خَيۡرًا كَثِيۡرًا (۱۹)

مومنو! تم کو جائز نہیں کہ زبردستی عورتوں کے وارث بن جاؤ۔ اور (دیکھنا) اس نیت سے کہ جو کچھ تم نے ان کو دیا ہے اس میں سے کچھ لے لو انہیں (گھروں میں) میں مت روک رکھنا ہاں اگر وہ کھلے طور پر بدکاری کی مرتکب ہوں (تو روکنا مناسب نہیں) اور ان کے ساتھ اچھی طرح رہو سہو اگر وہ تم کو ناپسند ہوں تو عجب نہیں کہ تم کسی چیز کو ناپسند کرو اور خدا اس میں بہت سی بھلائی پیدا کردے (۱۹)
(ترجمہ: فتح محمد جالندھری)

*O ye who believe! It is not lawful for you forcibly to inherit the women (of your deceased kinsmen), nor (that) ye should put constraint upon them that ye may take away a part of that which ye have given them, unless they be guilty of flagrant lewdness. But consort with them in kindness, for if ye hate them it may happen that ye hate a thing wherein Allah hath placed much good. (19)*

## سورۃالنساء آیت مبارکہ24

وَّالۡمُحۡصَنٰتُ مِنَ النِّسَآءِ اِلَّا مَا مَلَکَتۡ اَیۡمَانُکُمۡ ۚ کِتٰبَ اللّٰہِ عَلَیۡکُمۡ ۚ وَاُحِلَّ لَکُمۡ مَّا وَرَآءَ ذٰلِکُمۡ اَنۡ تَبۡتَغُوۡا بِاَمۡوَالِکُمۡ مُّحۡصِنِیۡنَ غَیۡرَ مُسٰفِحِیۡنَ ؕ فَمَا اسۡتَمۡتَعۡتُمۡ بِہٖ مِنۡہُنَّ فَاٰتُوۡہُنَّ اُجُوۡرَہُنَّ فَرِیۡضَۃً ؕ وَلَا جُنَاحَ عَلَیۡکُمۡ فِیۡمَا تَرٰضَیۡتُمۡ بِہٖ مِنۡۢ بَعۡدِ الۡفَرِیۡضَۃِ ؕ اِنَّ اللّٰہَ کَانَ عَلِیۡمًا حَکِیۡمًا (۲۴)

اور شوہر والی عورتیں بھی (تم پر حرام ہیں) مگر وہ جو (اسیر ہو کر لونڈیوں کے طور پر) تمہارے قبضے میں آجائیں (یہ حکم) خدا نے تم کو لکھ دیا ہے اور ان (محرمات) کے سوا اور عورتیں تم کو حلال ہیں اس طرح سے کہ مال خرچ کر کے ان سے نکاح کرلو بشرطیکہ (نکاح سے) مقصود عفت قائم رکھنا ہو نہ شہوت رانی تو جن عورتوں سے تم فائدہ حاصل کرو ان کا مہر جو مقرر کیا ہو ادا کردو اور اگر مقرر کرنے کے بعد آپس کی رضامندی سے مہر میں کمی بیشی کرلو تو تم پر کچھ گناہ نہیں بےشک خدا سب کچھ جاننے والا (اور) حکمت والا ہے (۲۴)
(ترجمہ: فتح محمد جالندھری)

*And all married women (are forbidden unto you) save those (captives) whom your right hands possess. It is a Decree of Allah for you. And lawful unto you are all beyond those mentioned, so that ye seek them with your wealth in honest wedlock, not debauchery. And those of whom ye seek content (by marrying them), give unto them their dowries as a duty. And there is no sin for you in what ye do by mutual agreement after the duty (hath been done). Lo! Allah is ever Knower, Wise.*

## سورۃالاحزاب آیت مبارکہ50

یٰۤاَیُّہَا النَّبِیُّ اِنَّاۤ اَحۡلَلۡنَا لَکَ اَزۡوَاجَکَ الّٰتِیۡۤ اٰتَیۡتَ اُجُوۡرَہُنَّ وَمَا مَلَکَتۡ یَمِیۡنُکَ مِمَّاۤ اَفَآءَ اللّٰہُ عَلَیۡکَ وَبَنٰتِ عَمِّکَ وَبَنٰتِ عَمّٰتِکَ وَبَنٰتِ خَالِکَ وَبَنٰتِ خٰلٰتِکَ الّٰتِیۡ ہَاجَرۡنَ مَعَکَ وَامۡرَاَۃً مُّؤۡمِنَۃً اِنۡ وَّہَبَتۡ نَفۡسَہَا لِلنَّبِیِّ اِنۡ اَرَادَ النَّبِیُّ اَنۡ یَّسۡتَنۡکِحَہَا خَالِصَۃً لَّکَ مِنۡ دُوۡنِ الۡمُؤۡمِنِیۡنَ ؕ قَدۡ عَلِمۡنَا مَا فَرَضۡنَا عَلَیۡہِمۡ فِیۡۤ اَزۡوَاجِہِمۡ وَمَا مَلَکَتۡ اَیۡمَانُہُمۡ لِکَیۡلَا یَکُوۡنَ عَلَیۡکَ حَرَجٌ ؕ وَکَانَ اللّٰہُ غَفُوۡرًا رَّحِیۡمًا (۵۰)

اے پیغمبر ہم نے تمہارے لئے تمہاری بیویاں جن کو تم نے ان کے مہر دے دیئے ہیں حلال کردی ہیں اور تمہاری لونڈیاں جو خدا نے تم کو (کفار سے بطور مال غنیمت) دلوائی ہیں اور تمہارے چچا کی بیٹیاں اور تمہاری پھوپھیوں کی بیٹیاں اور تمہارے ماموؤں کی بیٹیاں اور تمہاری خالاؤں کی بیٹیاں جو تمہارے ساتھ وطن چھوڑ کر آئی ہیں (سب حلال ہیں) اور کوئی مومن عورت اگر اپنے تئیں پیغمبر کو بخش دے (یعنی مہر لینے کے بغیر نکاح میں آنا چاہے) بشرطیکہ پیغمبر بھی ان سے نکاح کرنا چاہیں (وہ بھی حلال ہے لیکن) یہ اجازت (اے محمدﷺ) خاص تم ہی کو ہے سب مسلمانوں کو نہیں۔ ہم نے ان کی بیویوں اور لونڈیوں کے بارے میں جو (مہر واجب الادا) مقرر کردیا ہے ہم کو معلوم ہے (یہ) اس لئے (کیا گیا ہے) کہ تم پر کسی طرح کی تنگی نہ رہے۔ اور خدا بخشنے والا مہربان ہے (۵۰)

(ترجمہ: فتح محمد جالندھری)

*O Prophet! Lo! We have made lawful unto thee thy wives unto whom thou hast paid their dowries, and those whom thy right hand possesseth of those whom Allah hath given thee as spoils of war, and the daughters of thine uncle on the father's side and the daughters of thine aunts on the father's side, and the daughters of thine uncle on the mother's side and the daughters of thine aunts on the mother's side who emigrated with thee, and a believing woman if she give herself unto the Prophet and the Prophet desire to ask her in marriage - a privilege for thee only, not for the (rest of) believers - We are Aware of that which We enjoined upon them concerning their wives and those whom their right hands possess - that thou mayst be free from blame. And Allah is ever Forgiving, Merciful.*

**14.** We are mindful of the fact that by virtue of entries in the Nikahnama, it is always bridegroom, who is on the receiving end and he has to be burdened with the liabilities under the entries in the Nikahnama. In view of well settled principles of law, such interpretation to the entries of Nikahnama would be given, which favour the bridegroom. Even otherwise, while interpreting the document, one has to infer plenary meaning therefrom and nothing can be imported beyond the contents of the document. We thus are inclined to concur with the view taken by the learned Single Judge in the case of *Syed NADEEM*

*RAZA through Attorney General v. Mst. AMNA-TUZ-ZAHRA and 2 others* **(2011 CLC 726 Lahore)** instead of *Mst. IRAM SHAHZADI v. MUHAMMAD IMRAN-UL-HAQ and others***(2019 MLD 112 Lahore)**. The relevant extract from the case of "Syed NADEEM RAZA through Attorney General" supra is reproduced below: -

> *"6. Even otherwise by carefully examining the pleadings of the parties, it is clear that petitioner/defendant had specifically mentioned in para No.2 of his written statement that the agreed upon dower had been paid to the plaintiff through her father on 3-5-1993. The words "agreed upon dower" (طے شدہ حق مہر) do indicate that he specifically referred to a specific amount and dower which was agreed at the time of marriage i.e. one mentioned in Column No.13 of the Nikahnama, Exh.P2.*
>
> *7. The para No.2 of the plaint filed by the respondent itself is quite ambiguous wherein she mentioned that the Nikah and marriage was ceremonized on following conditions: ---*
>
> > *(a) Rs.5 lac dower amount payable on demand;*
> >
> > *(b) Built up house upon an area of 20 Marlas at Multan;*
> >
> > *(c) One square agricultural land situated at Chak Shah Muhammad, Bahawalnagar Farm, District Okara;*
> >
> > *(d) Respondent will allow the plaintiff to carry on her education according to her own will.*
>
> *8. From the above contents of para No.2 of the plaint except for amount mentioned at serial (a), the rest of the covenants mentioned at serial Nos. (b), (c) and (d) have been mentioned as the conditions of the marriage and it is not mentioned that the items (b) and (c) are the part of dower amount. The conditions of "marriage" and the "dower" are by no means to stand on equal pedestal as the former is not the condition precedent of Nikah, whereas without fixation of dower, the concept of Nikah is inconceivable.*
>
> *9. Apart from pleadings of the parties, the format of Nikahnama Exh.P2 and the contents thereof are to negate the arguments advanced by the learned counsel for the respondent/plaintiff to the effect that the entries made in Column No.16 of the said Nikahnama are to be read along with the entries of Column No.13 of the same, constituting a single bigger whole dower payable to the bride by the bridegroom. The court finds no nexus between the entries of Column No.13 and the Column No.16 of the Nikahnama except in circumstances, when all or part of any dower amount has been paid in shape of kind and in case nothing has been paid in shape of kind in lieu of fixed dower, then any entry made therein would be superfluous, needless and dispensable. In Column No.13, the total of the dower amount is to*

*be mentioned as it is worded, "amount of dower" (مہر کی رقم). In the present case, this column bears the entry, "Rs. 5 lac, payable on demand" (پانچ لاکھ روپے عندالطلب). Column No.16 is worded, "if dower or portion of the same has been paid by virtue of some property and if so what is the nature of the property and what value of the same has been determined between the parties".*

آیا پورے مہر یا اس کے کسی حصے کے عوض میں کوئی جائیداد دیگئی ہے اگر دی گئی ہے تو اس جائیداد کی صراحت اور اس کی قیمت جو فریقین کے مابین طے پائی ہے۔

*10. The wording of the said column is crystal clear to indicate that it refers to past transaction. It never covenants between the parties for some future liability, rather the same is considered as an explanation for an act done in compliance and in furtherance to agreed amount of payable dower.*

*11. It is pertinent to note that the learned Judge Family Court, while deciding the issue with regard to determination of payable dower only decided the fact that the dower was not proved as having been paid as pleaded by the defendant, whereas no specific determination of the fact has been made that what was the fixed dower between the parties. The learned Additional District Judge dismissed the appeal without touching the merits of the case and held that the appeal was incompetent because, the specifically ordered about the bond of Rs.5 lac by the lower court, to be deposited by the defendant, was never complied with. Both of the judgments are even not to stand with the requirements of the C.P.C. vis-à-vis, term, "judgement". Such generalization is not acceptable nor so are expected from the judicial officers qua required deliberation upon each and every fact in the light of relevant law with due application of mind. While setting-aside the judgments, the suit is decreed only to the amount of Rs.5 lac payable as dower. Writ petition is accepted."*

**15.** Next comes question-B. It is reiterated that marriage is a civil contract. It establishes a firm bond of love, confidence, affection and mutual trust interse spouses. Allah Almighty, in Holy Qur'an describes the relationship between the spouses as raiment worn to cover the body and says that "women were your garments and men are their apparel". The Nikahnama in the Form annexed with the "Rules 1961" contributes to the confusion leading to recording of terms of the marriage contract in the wrong columns. Manifestly, column No.13 for example seeks information in terms of the amount of dower whereas it is settled law that dower can be in the form of an amount, tangible or intangible property. This Court has been approached by the parties with claim to the effect that movable and immovable properties specified in

column No.13 are not enforceable for the said column only visualizes dower in terms of an amount. Column No.16 of the Nikahnama Form on the other hand postulates a question regarding property while treating that to be only in lieu of whole or any portion of the property and value thereof agreed between the parties so that it is clearly stated that the property in column No.16 is for how much part of the dower specified in column No.13 of the Nikahnama Form. Why is there no specific column in the Nikahnama Form regarding movable and/or immovable property in addition to the amount of dower in column No.13? If no value of the property is agreed between the parties and specified in the entry in column No.16 of a Nikahnama, can such property be treated to be in lieu of dower or any part thereof? If so, in lieu of how much part of the dower? How would intentions of the parties in specifying a property in column No.16 of the Nikahnama be construed where the amount of dower specified in column No.13 was promptly paid in entirety at the time of marriage? These are a few, amongst many, questions arising from the confusion caused by the manner in which Nikahnama Form has been prescribed and/or filled in. We are mindful of the fact that while making entries in the Nikahnama, oftenly in column No.16, some immovable property is incorporated, which sometimes owned by the mother or father of the bridegroom. It is oft repeated principle that no one can be deprived of his property without due course of law. If the property mentioned in Nikahnama is not owned by the bridegroom, rather it is ownership of his father, mother or brother, who is neither signatory to the Nikahnama nor had agreed to transfer the same in favour of bride, entries in Nikahnama cannot be enforced against him/her and he/she cannot be deprived of his/her property. Guidance in this respect can be sought from *FAWAD ISHAQ and others v. Mst. MEHREEN MANSOOR and others* **(PLD 2020 Supreme Court 269)**.

**16.** The situation, however, would become different when on behalf of bridegroom, his father, mother or any other person being

owner of such property find mentioned in the Nikahnama becomes signatory of the Nikahanam, he/she binds himself/herself to the terms and conditions and as such, he/she parts with the ownership rights of the property in favour of bride. Reference in this respect can be made to *"Mst. RAZIA BEGUM v. JANG BAZ and 3 others"* ***(2012 CLC 105 Lahore)***, *"MUHAMMAD ANWAR KHAN v. SABIA KHANAM and another"* ***(PLD 2010 Lahore 119)***, *Mst. SHUMAILA BIBI v. ZAHIR KHAN and 3 others* **(PLD 2015 Peshawar 182)** and *GUL AKBAR and another v. JAMEELA AFRIDI and 4 others* **(PLD 2016 Peshawar 109)**.

**17.** Now coming to the merits of cases at hand, we have noticed that in W.P.No.2111 of 2013, petitioner No.1 is owner of 5-Marlas whereas rest 5-Marlas belong to his father/petitioner No.2, who was also signatory to the Nikahnama. In this situation, in view of discussion made hereinabove, both petitioners No.1 and 2 will become liable equally. We since have already observed that entry in column No.13 is rider to entries in columns No.14, 15 and 16, so respondent No.1 in the first instance can lay her claim with regard to Rs.5,00,000/- as dower mentioned in column No.13 and if due to any reason, dower is not paid to her then she would become entitled to the property mentioned in column No.16 in lieu thereof.

**18.** It is though contention of learned counsel for petitioners No.1 and 2 that dower in shape of Rs.5,00,000/- has already been paid to respondent No.1 and to this effect he has mainly relied upon statement of Major (Retd.) Sohail Anjum Khan (DW-3) but after having apprised the statement of said witness, we are in agreement that petitioners No.1 and 2 have failed to prove that they have paid the dower amounting to Rs.5,00,000/-. We thus hold that impugned judgment and decree dated 4th June, 2013 passed by the learned Additional District Judge, Taxila holding the respondent No.1 entitled for Rs.5,00,000/- as well as plot measuring 10-Marlas as dower is not tenable to the extent of plot. As such it is accordingly modified. As a

sequel, suit of respondents No.1 and 2 to the extent of Rs.5,00,000/- as dower stands decreed.

**19.** Coming to the second petition i.e. W.P.No.2716 of 2019, we have noticed that initially suit instituted by petitioner No.3 was decreed vide judgment dated 26th April, 2019 in the following manner: -

> *"**26.** Keeping in view of my findings on above said issue, the suit of the plaintiffs is hereby partially decreed to the effect that: -*
>
> *(i) The plaintiff is entitled to receive dower amount of Rs.100000/- from the defendant.*
>
> *(ii) ....*
>
> *(iii) The plaintiff is entitled to receive possession of house as per share of defendant, as per column No.16 of nikahnama, situated in Village Mousa Tehsil Hazro District Attock from defendant or its alternate market value which would be determined at the time of execution proceedings, if possession of house could not be given to plaintiff due to any reason....."*

Respondent No.3 feeling aggrieved preferred an appeal before the learned Additional District Judge, Attock, who while allowing the appeal set aside the judgment of the learned Judge Family Court to the extent of house mentioned in column No.16 of Nikahnama.

**20.** Since it is an admitted fact that house in question was owned by father of the bridegroom and he was neither signatory to the Nikahnama nor he has given any consent for the transfer of the same in favour of his daughter-in-law, so petitioner No.3 was precluded to claim said house. We thus see no legal infirmity in the judgment dated 26th June, 2019 passed by the learned Additional District Judge, Attock in this regard.

**21.** For the foregoing reasons, we partly allow W.P.No.2111 of 2013 on the terms mentioned in para-18. No order as to costs.

**22.** Before parting, we must observe that the above noted anomalies oftenly occur due to incompetency or willful fault on the part of Nikah Registrars, who ordinarily avoids the adherence to the "Rules,

1961". In order to avoid such problems in future, we would like to issue direction to all the Nikah Registrars to ensure compliance of Rules 7 to 13 of the "Rules, 1961" while recording entries in the Nikahnama. They shall also avoid from incorporating any entry other than allowed in Nikahnama and take special care while making entries in columns No.13 to 16. The Nikah Registrars shall only record the entry of dower in column No.13 whatever is fixed by the parties as dower. We also issue following directions:-

**A.** The Federal Government and Provincial Government of Punjab are directed to amend column No.13 of the Nikahnama as follows:-

**13.** Dower:

**(i)** Amount in cash_____

(ii) Moveable property_____

(iv) Immovable property with specification ___

_____

**B.** The Federal as well as Provincial Government are directed to prescribe minimum educational qualification for the grant of licence to the Nikah Registrar in pursuance of Rule 5 (2) of the "Rules, 1961" and make arrangement for their proper training.

**C.** Till such time the Nikahnama Form prescribed under Rule 8 of the Rules is suitably amended, each case shall be decided on its own facts and circumstances keeping in view intention of the parties as expressed in the Nikahnama.

**23.** Needless to observe that if the parties are desirous to fix some other beneficial condition in addition to dower, they should

execute an independent instrument to that effect instead of intermingling the same with the dower. If there is some negligence on the part of Nikah Registrars in adhering the above directions, he shall be made liable to be proceeded in accordance with law. Office to circulate this judgment to all concerned.

**(RAHEEL KAMRAN)**
**JUDGE**

**(MIRZA VIQAS RAUF)**
**JUDGE**

*Announced in open Court on* ***13.12.2021.***

***Approved for reporting.***

**JUDGE** **JUDGE.**

***Zeeshan****